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Case Number: 25STCV27327 Hearing Date: September 23, 2026 Dept: 224

Philly Auto Inc. v. PARS Auto Wholesales Inc. et al.,

TENTATIVE RULING

Plaintiff's Motion to Compel Further Responses and Compliance re Requests for Production is GRANTED. Within 20 days, Defendant Pars Auto Whole Sales Inc. shall serve verified, code-compliant further responses to RFP Nos. 1-7 and 9-18, including a privilege log for any responses withheld on the basis of privilege.

Sanctions of \$1,671.76 are imposed against Defendant and counsel Yasha Rahimzadeh, jointly and severally, payable within 30 days.

Legal Standard

"A party may demand that any other party produce . . . a document that is in the possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010(b).) The demanding party may move for an order compelling further response to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand," and "[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310(b).)

Unlike with requests to compel further interrogatories, a moving party seeking to compel further responses for requests for production must show good cause along with satisfaction of the meet and confer requirement. (CCP§ 2031.310(b).)

To prevail, a party moving for an order compelling further responses to a document production demand must first offer specific facts demonstrating "good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.) If "good cause" is shown by the moving party, the burden shifts to the responding party to justify any objections made to document disclosure. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.)

"The party to whom a demand for inspection, copying, or testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: (1) A statement that the party will comply with the particular demand... A statement that the party ... will comply with the particular demand shall state that the production will be allowed either in whole or in part, and that all documents or things in the demanded category that are in possession, custody, or control of that

party and to which no objection is being made will be included in the production. (2) A representation that the party lacks the ability to comply with the demand... A representation of inability to comply with the particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of items. (3) An objection to the particular demand... If only part of an item of category of item in a demand... is objectionable, the response shall contain a statement of compliance or a representation of inability to comply with respect to the remainder of that item or category. If the responding party objects to the demand... the response shall do both of the following: [a] Identify with particularity any document or tangible thing... falling within any category of item in the demand to which an objection is being made, [b] Set forth clearly the extent of, and the specific ground for the objection.... If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (California Code of Civil Procedure §§ 2031.210, 2031.220, 2031.230, and 2031.240)

Good Cause

Plaintiff seeks the core files, "wash-out sheets", and repair records pertaining to the vehicle at the center of this litigation. Good cause has been established.

Discussion

Plaintiff served Requests for Production (Set One) on February 9, 2026. On March 11, 2026, Defendant served unverified responses and a 34-page production. The responses asserted general objections, vagueness objections to Nos. 1, 2, and 5, and relevance and vagueness objections to No. 14. For Nos. 12 and 13, Defendant stated only that "[d]iscovery is continuing." Every response closed with: "Responding Party will produce all documents in its possession or control." General Objection No. 2 stated that documents would not be organized by request. (Noy Decl. ¶ 3, Ex. B.)

Plaintiff sent a meet-and-confer letter on March 16, 2026. On March 23, 2026, defense counsel replied that the letter was "without merit." Counsel declined to identify documents by request number and stated that repair documents "do not exist." Plaintiff responded the same day and followed up on April 1 and April 5, 2026. Defendant did not reply. Defendant served a verification on April 1, 2026. (Noy Decl. ¶¶ 4–7, Exs. C–D.) No opposition has been filed.

On May 4, 2026, Plaintiff filed the instant Motion to Compel.

Defendants have not opposed the motion.

The responses ("will produce all documents in its possession or control") are not complete statements of compliance under section 2031.220. Defense counsel represented that repair documents do not exist. Where documents do not exist or are not in Defendant's possession, custody, or control, Defendant must make a verified statement under section 2031.230, including the name of anyone believed to hold them.

Defendant has not justified its objections. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.) The vagueness objections fail because the terms are defined in the requests. "Discovery is continuing" is not a valid objection. The general objections are too general.

Defendant must identify produced documents by the request number to which they respond. (Code Civ. Proc., §§ 2031.280, subd. (a), 2031.320, subd. (a).)

Further response is ordered.

Sanctions

Sanctions are warranted against a party or attorney who unsuccessfully opposes, or fails without substantial justification to comply with, discovery obligations. (Code Civ. Proc., §§ 2023.010, 2031.310, subd. (h), 2031.320, subd. (b).) Sanctions may be awarded even where no opposition is filed. (Cal. Rules of Court, rule 3.1348(a).)

No substantial justification is shown.

Counsel claims 3.0 hours spent, 1.0 hour for a reply, and 1.0 hour for the hearing, all at \$400 per hour. Because no opposition was filed, no reply time is allowed. The Court awards 4.0 hours at \$400 (\$1,600) plus \$71.76 in filing costs, for a total of \$1,671.76.

The request for sanctions is GRANTED in the amount of \$1,671.76.

Conclusion

Plaintiff's Motion to Compel Further Responses and Compliance re Requests for Production is GRANTED. Within 20 days, Defendant Pars Auto Whole Sales Inc.

shall serve verified, code-compliant further responses to RFP Nos. 1-7 and 9-18, including a privilege log for any responses withheld on the basis of privilege.

Sanctions of \$1,671.76 are imposed against Defendant and counsel Yasha Rahimzadeh, jointly and severally, payable within 30 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.